



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 16, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202107188 (Incident Date: November 17, 2021) regarding Police Officer Arun Arora, Tax No. 962223 (DADS No. 2023-27973) and Police Officer Marlon Castro, Tax No. 960342 (DADS No. 2023-27974)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that no disciplinary action is warranted.

In this matter, Police Officer Marlon Castro and Police Officer Arun Arora responded to an emergency call for assistance of a workplace dispute. Management and employees requested the complainant to leave the location multiple times; however, the complainant refused to comply. The officers responded and advised the complainant that he had to leave the premises. The available Body-Worn Camera footage shows that the officers were courteous, patient, and used various de-escalations techniques in an attempt to safely gain voluntary compliance from the complainant. The complainant was afforded multiple opportunities to vacate the premises and refused to comply with the officers' directions.

Pursuant to Patrol Guide Procedure 221-01 (Force Guidelines), force may be used when it is reasonable to place a person in custody. Furthermore, "when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force."

As de-escalation techniques proved unsuccessful, the officers determined that the situation required an arrest to be effectuated and used a reasonable amount of force to lift the resisting complainant and place him under arrest. As per the CCRB's own report, a witness to the incident stated that the complainant, "continued resisting, standing firmly on the ground, closing his hands in fists beside him, and refusing to move." Subsequently, due to his resistance, the complainant suffered an injury when the officers had to lift him in order to effectuate his arrest.

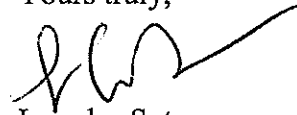
COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

The force used to take this uncooperative individual into custody was neither unnecessary nor excessive given the totality of the circumstances. The force used was properly documented, and within department guidelines.

Therefore, based on the foregoing, the Police Commissioner determined that Police Officer Arora and Police Officer Castro will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 221-01 (Force Guidelines) and Patrol Guide Procedure 221-02 (Use of Force).

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a long, sweeping horizontal line extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office